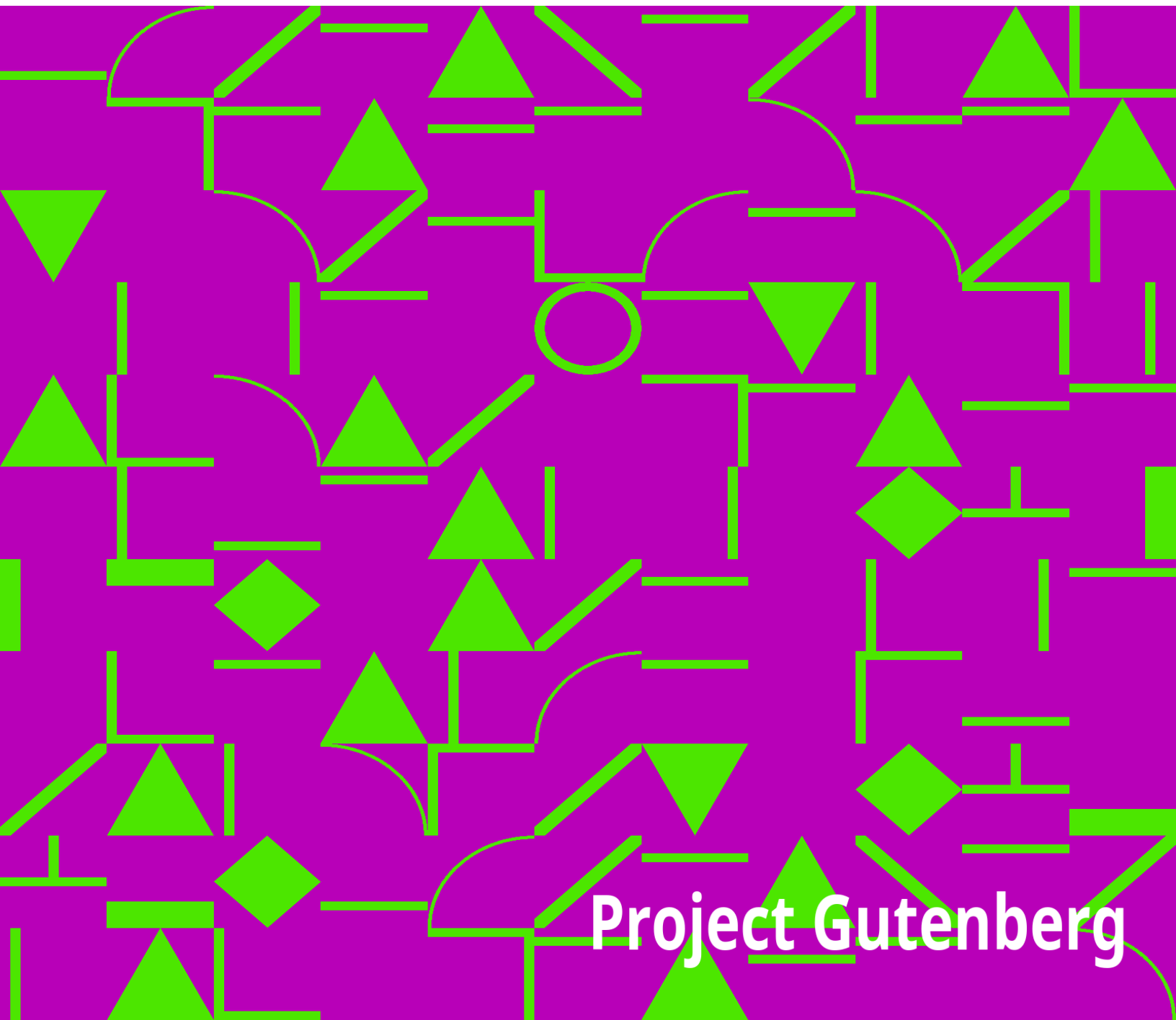


Fundamental Peace Ideas including The Westphalian Peace Treaty (1648) and The League Of Nations (1919)

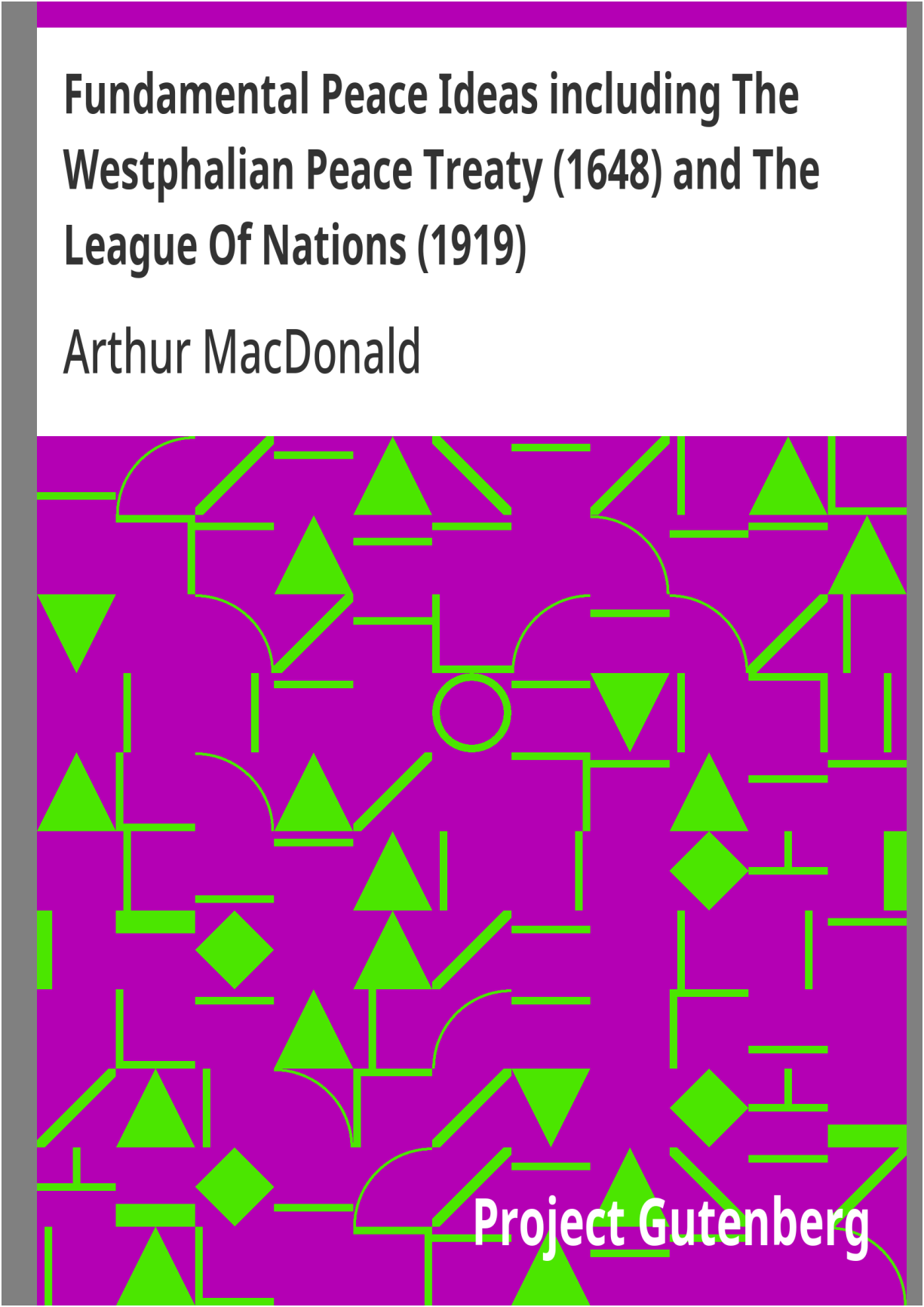
Arthur MacDonald



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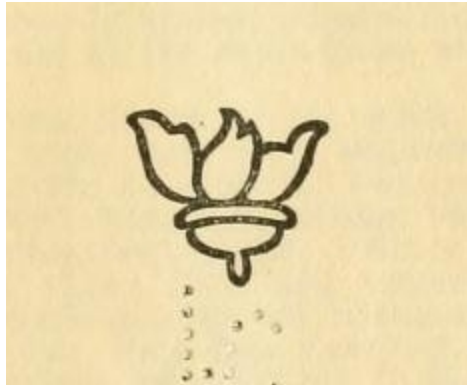
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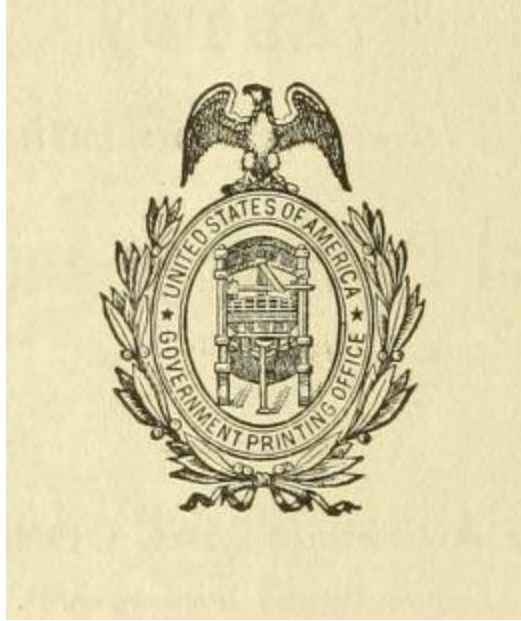
By ARTHUR MAC DONALD
Anthropologist: Washington, D. C.

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The Westphalian Peace Treaty (1648) and the League of Nations (1919) in Connection With International Psychology and Revolutions.

BY ARTHUR MAC DONALD,

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of the International Congress of Criminal
Anthropology of Europe.

INTRODUCTION.

The League of Nations may only be a first step in the direction of permanent peace, yet not a few persons seem doubtful of its utility. However, the league may be the lesser evil as compared with the old régime, which appears to have resulted in total failure after a very long and fair trial.

Whatever be the ultimate outcome of the league and of the problems to be solved, the one encouraging thing is that all the people are thinking seriously on the subject and longing for some way to stop war. It may be true that lasting peace can only be secured when both people and leaders (sometimes the people lead the leaders) realize the necessity of peace and the senselessness of war. But to reach such a happy realization of the truth what are we, the people, to do now? Already the discussions of the league (pro and con) have fertilized the soil; the minds of the people are open as never before; and now is the supreme moment to sow peace seeds. The sooner, more thoroughly, and wider they are scattered, the better. In this way we may be able to so impress peace ideas upon everyone, as to avoid the terrible necessity of a future war, in which both sides become exhausted, as in the Thirty Years' War, which would be a much more horrible war than the present war.

To escape such a catastrophe and make a league of nations or any kind of peace arrangements endure is preeminently an educational problem, and consists mainly in repeatedly filling the minds of the people, old and young, everywhere with fundamental peace conceptions. Shall we not begin at once and persist in doing this until political wars become as impossible in the future as religious wars are now?

SUGGESTIONS OF THE PEACE TREATY OF WESTPHALIA FOR THE LEAGUE OF NATIONS.^[1]

The conference of nations that has taken place around the peace table at Paris is doubtless the most important of any in history. One reason is the fact that the plan the conference has decided to carry out will necessarily concern most all countries of the world. For railroads, steamships, aeroplanes, telegraphs, telephones, and wireless telegraphy, as never before, have made communication between nations so easy, quick, and direct that distance is almost eliminated, enabling the whole world to think, reason, and act at the same time, and to be influenced as one human solidarity.

There seems to be a strong desire in all lands that the peace conference will make future wars not only improbable but practically impossible. But how can this be done? For years countless peace plans and theories have been proposed filling volumes of books, but they are mainly of a speculative nature. Since theoretical grounds have proved inadequate, is there then any experience in the history of the world which can be made a basis for permanent peace? Is there, for instance, any kind of war that has resulted in doing away with itself permanently? The answer would point to the Thirty Years' War, closing with the peace of Westphalia (1648), which seems to have put an end to all religious wars.

How, then, does it happen that the peace treaty of Westphalia, of all the treaties in the world, is the only one that has succeeded in stopping all religious wars? We are certainly dealing here with a phenomenal fact in history. The writer has been unable to find any discussion of this phase of the matter. It would therefore seem of interest and importance, especially at the present time, to make a brief anthropological study of the Thirty Years' War which led to such an exceptional and successful treaty.

NEW FIELD FOR ANTHROPOLOGY.

From the anthropological point of view, history can be looked upon as a vast laboratory for the purpose of studying humanity and assisting in its progress. In the past anthropology has concerned itself mainly with savage and prehistoric man, but it is due time that it take up the more important and much more difficult subject of civilized man, not only as an individual but as an organization^[2] or nation, or group of nations. It is true that other departments of knowledge, such as history and political science, have pursued these fields, but unfortunately not always in the scientific sense; to use an ancient pun, it is his story, rather than all the facts. Anthropology in this new field should seek to establish only those truths which can be based upon facts. There are doubtless many very important truths which can not be established by scientific methods, but perhaps they can be better treated in political science, psychology, ethics, philosophy, and theology.

In the present inquiry the anthropological problem is this: As religious wars are admitted to be the most intense, most idealistic, and most sacrificial of all wars, and therefore most difficult to stop, can it be ascertained just how the Thirty Years' War, culminating in the peace of Westphalia, brought about the end of all religious wars? This might suggest how all political wars may be made to cease. If the seventeenth century accomplished the more difficult task, the peace conference at Paris ought to succeed in the less difficult one. If the twentieth century prides itself on being superior in diplomacy, practical statesmanship, and general mental caliber, it will now have an opportunity to show such superiority by formulating a treaty which will make all future political wars not only improbable but impossible.

PRINCIPLES OF A PEACE CONFERENCE.

In following the present peace conference and comparing it with the peace congress of Westphalia, it may be well to mention a few of the principles of such congresses in general. In a treaty of peace there are first of all the usual articles, as, e.g., a declaration that peace is restored and amnesty clauses, including restitution of such conquests as are not intended to be retained, and of rights suspended by the war. Also there are provisions to remove the causes out of which the war arose, redress grievances, and

prevent their recurrence. This is the most essential thing for the congress to do. Then there is the indemnity article to make satisfactory reparation for injury sustained and cost of war. But great prudence should be exercised here, otherwise the conquered power may feel deep resentment which is liable to sow seeds for a future war.

As to personal attendance at the congress, one great advantage is that difficulties thought insurmountable in correspondence often disappear in an interview. Half the work is done when members have come to know what each really wants. But in long discussions there is danger of becoming fatigued and making ill-advised concessions. There is also temptation for some members to interfere where they have no substantial interests nor rights, and to contract engagements in which they have no special concern. When strong enough, every nation will insist on the right to manage its own internal affairs. Sometimes there are a few particularly able men, speaking several languages fluently (a very practical advantage), but representing only small countries, who may exercise undue influence and cause the congress to authorize things which may not prove of equal justice to all. Members of congresses have been known to vote for things that they did not understand, to the great disadvantage of their own country, due mainly to inexperience and lack of familiarity with the language spoken in the congress.

THE PEACE OF WESTPHALIA.

As early as 1636 Pope Urban VIII extorted from the powers engaged in the Thirty Years' War their unwilling consent to treat. In 1637 a discussion of safe conducts was begun, which lasted nearly five years, and it was not until 1641 that preliminaries as to time and place of the congress were signed, and these were not ratified, nor safe conducts exchanged, until 1643, making six years for controversies as to mere formalities. One of the causes of this dilatoriness was that neither side really desired peace. Captiousness and punctiliousness were doubtless emphasized in order to obtain delay. The labor of concluding peace was colossal; there were endless obstacles to surmount, contending interests to reconcile, a labyrinth of circumstances to cope with, difficulties to overcome besetting the congress from the very

outset of the negotiations, not only of arranging the conditions of peace but still more of carrying them through the proceedings.

It is therefore fair to assume that the difficulties in establishing the Peace of Westphalia were as great as, and probably greater than, those now confronting the peace conference at Paris. For in the Westphalian congress nobody desired peace, and it was not possible to agree to an armistice, so that war continued while the congress was in session, materially affecting the deliberations; this may be one reason why the congress lasted as long as four years.

To avoid questions of precedence and to lessen further opportunities for disagreement, two cities in Westphalia, Munster for the Catholics and Osnabruck for the Protestants, were selected. These places were a short day's ride apart. The treaty was signed at Munster October 24, 1648, and was called "The Peace of Westphalia." In addition to the disposition for delay, there was a tendency to criticize things generally. Thus certain plenipotentiaries complained of their accommodations, saying that the houses assigned to them, though high and handsome externally, were in fact rat holes. The streets also were pronounced very narrow, so much so that when a certain very polite diplomat, who wore a very large hat, made from his coach an extremely low bow, his hat hit a very expensive vase in an open window, which fell and broke, causing great embarrassment.

First, questions of etiquette were taken up. For instance, did the precedence belong to Spain, and what marks of honor were due to the representatives of the neutral powers? Then came contests for the ecclesiastical seats. The Nuncio, the representative of the Pope, wished to sit not only at the head of the table but wanted a canopy over him to distinguish him. The way in which the minor powers should be received was in doubt. It was finally decided to go half-way down the stairs with guests when departing. Also the question of titles arose. The word "excellency" was chosen for addressing the envoys of the great powers, but it had to be extended to the lesser powers. The Venetian envoy obtained the honor (to his joy) of being conducted, when he visited the French plenipotentiary, to the door of his coach, instead of to the staircase. These few of the many incidents during the congress will illustrate the human side of official matters. Such disputes as to precedence and etiquette were to be expected in a proud and

ceremonious age among representatives of numerous States, especially when many of them were of doubtful rank. There was also much display. A train of 18 coaches conveyed the French envoys in their visits of ceremony. It appeared that France desired to show that she had not been impoverished by the war like Germany.

The papal nuncio and the Venetian envoy were mediators as well as members of the congress. France and Sweden were opposed to each other in religion, but in accord on political matters. The treaty was drawn up with such fullness and precision of language as is rarely found in documents of this nature, due to a large body of trained lawyers among the members. As indicating a desire for fairness in little things as well as in larger questions, the treaty contained these words: "No one of any party shall look askance at anyone on account of his creed." As an example of wise provisions, the following may be noted: The Protestants demanded the year 1618 as *annus normalis* for the restitution of ecclesiastical estates, the Catholics insisted on the year 1630, which was much more favorable to them. The congress split the difference and made it 1624. The *medius terminus* is often the wisest course in acute controversies. As to temporal affairs, all hostilities of whatever kind were to be forgotten, neither party being allowed to molest or injure the other for any purpose. In regard to spiritual affairs, complete equality was to exist (*aequalitas exacta mutuaque*), and every kind of violence was forever forbidden between the parties.

The peace of Westphalia was the first effort to reconstruct the European states' system, and it became the common law of Europe. Few treaties have had such influence, and Europe is said for the first time to have formed a kind of commonwealth watching with anxiety over the preservation of the general peace.

THE THIRTY YEARS' WAR.

To have called to mind some of the principal points in the peace of Westphalia is not sufficient for understanding the real significance of the treaty without some consideration of the war which it closed. As already suggested, this war, looked at from a scientific point of view, is an unconscious experiment of nations, an attempt to solve a problem in

abnormal international psychology. In order to comprehend this experiment and its resultant treaty, just how it brought about permanent religious peace, some of the main events of the war must be recalled as a basis upon which to work.

The Protestant Reformation had great influence upon almost everything political in Europe, until the peace of Westphalia. The religious peace of Augsburg (1555) furnished no settlement to questions stirred up by the Reformation. It was inevitable that such fundamental disagreements should lead to a general war. The Thirty Years' War marked the end of the Reformation, which changed the idea of Christian unity and altered the theory of a holy Roman empire, replacing it by the idea of autonomy for individual states.

On May 23, 1618, a body of Protestants entered the royal palace at Prague and threw two detested representatives of the Crown from the window. This act started a struggle that for 30 years involved Europe in a war which spread gradually from Bohemia over southern Germany, then slowly to northern Germany and Denmark, until country after country began to take part and the fighting became general. The war might have ended in 1623, making it a five years' war, had it not been for the outrageous treatment of the Protestant states of northern Germany, resulting in a political disintegration in which Germany lost half of her population and two-thirds of her wealth. Her religion and morality sank low, and the intellectual damage required generations to restore.

The Roman Catholic Church, having guided Christianity for centuries without a rival, naturally felt greatly wronged by Protestant secession. This explains the uncompromising enmities of the Thirty Years' War. Various parties claimed the control of the religious doctrines to be taught the people, as well as control of worship; they were fighting each other for this power, ready to sacrifice their lives for it. The Lutherans were as intolerant toward the Calvinists as they were toward the Catholics. The Catholic Church, convinced of the absolute truth of its doctrines based upon 13 centuries of growth, naturally could not tolerate some young reformers to arise and challenge its divine right, especially not since these reformers seized old monastic and ecclesiastic foundations with domains and edifices and administered them in their own interest. The resistance of the Catholic

hierarchy, to the last drop of blood, was a normal reaction. As so often happens, the conditions were abnormal, not the human beings.

Had the war stopped in 1623 the Catholics would have been left with decided advantages. Their own ambitions, however, prevented it. Gustavus Adolphus appeared, and by his efforts Protestantism is said to have been saved from extinction. During 13 of the 30 years the lands of the Protestants had been devastated; during the next 17 years an equalization of the exhaustion of the parties developed before a lasting religious peace was made. It became clear in the end that neither Catholics nor Protestants could crush their opponents without perishing likewise.

TERRIBLE RESULTS OF THE WAR.

The terrible results of the Thirty Years' War may be summed up by saying that Germany was the carcass, and the hosts which invaded the German soil were the vultures. The Protestant invaders were Swedes, Finns, Hollanders, Frenchmen, Englishmen, and Scotchmen; on the Catholic side there came in Spaniards, Italians, Walloons, Poles, Cossacks, Croats, and representatives of nearly all other Slavonic tribes. There was an army never larger than 40,000 men, but the camp followers were 140,000, consisting of gangs of Gypsies, Jewish camp traders, marauders, and plunderers. The soldiers robbed and tortured all alike, both friend and foe. The inhabitants would flee to the woods, taking with them or hiding everything they could. But the invaders were experts in discovering secret treasures; they would pour water on the ground, and where it sank quickly there they knew something had been recently buried.

To retaliate, the peasants would watch for stragglers, for the sick and wounded who had dropped behind, putting them to death with every device of insult and cruelty known. Much of the cruelty is too hideous to mention. In many districts the desolation was so great that persons were found dead with grass in their mouths. Men climbed up the scaffolds and tore down the bodies of those hanged and devoured them. The supply was large. Newly buried corpses were dug up for food. Children were enticed away that they might be slain and eaten. The population, when plundered, would become plunderers in turn, forming into bands, and inflict on others the horrors that

they themselves had suffered. Men became wholly indifferent to the sufferings of others. Whole countries were destroyed, towns and villages reduced to ashes, and civilization was pushed back into barbarism for half a century. The Thirty Years' War is said to have been so unspeakably cruel and calamitous that the like has never been known in Europe.

CAUSES OF THE LENGTH OF THE WAR.

Gustavus Adolphus writes in a letter that the war would be long drawn out and stop from exhaustion. The original purpose of the war was the suppression of the Protestant faith, but the victories of Gustavus Adolphus made the Catholics hopeless. Also other interests of a political nature rose up, the war passed from a German to a European question. Though there were times when peace might have been made, the side who had the best of it for the moment deemed it folly to stop when victory was in reach. The other side thought it base and cowardly not to continue, as some turn of fortune might repair the losses. Many a war has dragged on after the purpose for which it began had become unattainable, because those who began it were too vain to admit that the objects of the war were impossible from its outset.

In a long war also individuals rise up to whom fighting becomes a second nature, who know nothing else but violence and murder. Thus many soldiers were indignant when the Westphalian peace was signed, for they felt they had a vested right to plunder and murder, looking upon a wretched, helpless population as their just prey.

A further reason for the long continuation of the war was the very exhaustion of both sides; there was not enough strength on either side to strike a decisive blow, nor sufficient energy left to make a vigorous effort for peace, making it seem useless to try. In the earlier and middle period of the war there were many cries for peace, but in the last eight years there was a terrible silence of death and such utter desperation that no one dared to speak of peace, so great was the exhaustion. The soldiers decreased as it became more and more difficult to recruit and feed them; the military operations grew feebler and more desultory, the fighting more inconclusive, though the misery did not diminish. But while the people and soldiers had

become tired of the interminable struggle and wanted peace, many of the diplomats did not appear to desire it.

CAUSES OF THE WAR.

The great length of the war gradually revealed its very hopelessness and uselessness, creating a general desire for rest and peace, transforming and weakening the religious movements out of which the war had arisen. The principle of private judgment, coming from the Reformation, had had time to develop and undermine the ideas of temporal rights and duties common to both parties, while many ideas first conceived by the Reformation but suppressed at the time, had at last commenced to grow through the long-continued tribulations.

Another cause of the war was the inherent incompatibility of religious views among the people. Religious discord exists to-day, but it is not decided by bloody contests, because of breadth of religious insight, general indifference, and increasing skepticism. The convictions of the people of the seventeenth century, as to the truth of their own opinions and the errors of their opponents, were of such an absolute character as can not be found nowadays even among people with the most rigid beliefs. They did not know then that it was possible to live together and yet have the most varied and contradictory religious convictions. To suppose that these people were stupid is an error. The chances are that they were less stupid than the people are to-day. How many, at the present time, can look at their country, its ideals, ideas, and customs justly and without prejudice? Naturally very few. But to place ourselves outside of not only our country but our generation is much more difficult. How could we then expect the people of the seventeenth century to do this?

IGNORANCE THE FUNDAMENTAL CAUSE OF THE WAR.

The fundamental cause that brought the Thirty Years' War to a close was mental insight into the uselessness and hopelessness of further struggle, caused by the feeling of exhaustion due to the long continuance of the war. The reason why this war put an end to all religious wars was, that this intellectual insight became general in Europe, inculcating more liberal

religious views. This psychological attitude, with increasing indifference to religion and resultant skepticism, caused religious questions to be regarded less seriously, making further wars for such purposes impossible. The basal reason, therefore, was the intellectual realization of the foolishness of bloodshed on account of difference of religious convictions; that is, lack of knowledge of this fact in the past—in short, ignorance—was at the bottom of it all, as of most evils in the world.

COMPARISONS BETWEEN THE THIRTY YEARS' WAR AND THE EUROPEAN WAR.

In order to learn what suggestions from the Thirty Years' War may be of use for the League of Nations in the future it will be well to mention the general similarities and differences between this war and the recent European war.

The similarities are as follows:

1. The Thirty Years' War began with the throwing out of a window (defenestration) of detested persons; the European war started from an assassination.
2. The Thirty Years' War had been expected for some time; a general European war had been predicted for many years.
3. The Thirty Years' War, beginning with a local incident, spread from country to country, just like the European war did.
4. The Thirty Years' War was exceedingly brutal for its generation, just as the European war has been for our time.
5. The Thirty Years' War was a very long one for its generation; the European war has been a relatively long one for recent times.

As to the differences between the two wars, it may be said that—

1. In the Thirty Years' War both belligerents finally proved to be nearly equal in strength. In the European war one of the belligerents, though at first meeting with reverses, in the end completely overcame the other.

2. The Thirty Years' War ended in the exhaustion of both belligerents; the European war closed with the exhaustion of only one belligerent.

3. The Thirty Years' War was waged for religious convictions rather than for gain; the European war was not so ideal in its purposes.

Taking a general view of the similarities and differences between the two wars, the one great question arises: Is the experience of the present European war strong enough for victors and vanquished alike to be willing to yield sufficient of their natural rights and sovereignty to submit all questions of war to some superior international court from which there is no appeal?

In the Thirty Years' War nothing further was necessary; the exhaustion of both belligerents was sufficient to end religious wars.

As the victorious party in war is much less inclined (if inclined at all) than the conquered foe to yield anything, will the Allies, without the experience of defeat and exhaustion, be willing to yield enough of their sovereignty to make the future peace of the world permanent? Will they be magnanimous and give up some national advantages of the present for future international benefits to all mankind? In short, are they unselfish enough to so temper their justice with mercy as to establish a world peace, the greatest boon to humanity ever known?

Here is a supreme opportunity. Will the victorious Allies arise to the occasion and make future wars improbable, if not impossible? We say "impossible," because if a nation is recalcitrant it can be punished by a general boycott, leading toward its economic ruin. As the instinct of self-preservation is the most powerful influence in nations as well as in individuals, it is a moral certainty that no nation could or would submit very long to such punishment. Just after a war is ended, when the belligerents feel more keenly its effect than later on, they are much more disposed to make mutual concessions. Will the victors of the European War strike at once while the iron is hot, and insist on the one paramount issue, the absolute prohibition of all wars? Such a decision would radiate through all further proceedings of the League of Nations and greatly facilitate its work. By thus making a certainty of the most important question of all history, no matter how difficult and delicate matters of greater or less importance may

be, the League of Nations will have assured its success in advance as the greatest and most beneficent influence that the world has ever experienced, just as the peace of Westphalia was in its generation.

In the peace treaty of Westphalia were these words: "The hostilities that have taken place from the beginning of the late disturbances, in any place of whatsoever kind, by one side or the other, shall be forgotten and forgiven, so that neither party shall cherish enmity or hatred against, nor molest nor injure the other for any cause whatsoever." Will the peace treaty of Paris contain as generous and noble words and stop all political wars forever, just as the peace of Westphalia put an end to all religious wars?

Will the twentieth century Christianity, with its supposed greater liberality and enlightenment, be as far-seeing, unselfish, and effective as the Christianity of the seventeenth century?

Let the League of Nations answer yes.

Just as the spread of education and knowledge has gradually liberated the intellect so as to undermine the ideas upon which religious wars were based, so a similar process of enlightenment may be necessary to cause political wars to cease.

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INTERNATIONAL PSYCHOLOGY AND PEACE.^[3]

The history of the world would seem to indicate that international psychology is almost synonymous with international anarchy. For the last 30 or more years, as is well known, a general European War was expected, predicated, and feared. This was the abnormal psychological condition of diplomatic and military Europe until the present war caused its realization. The world appears always to have existed in a pathological condition of possible, probable, or actual war. The question is, "Shall the world continue to this old way of international anarchism and political pathology, or shall it make a supreme effort to shake off this monstrous incubus of war?"

It is peculiar circumstances that, while anarchism within a nation is generally detested, anarchism between nations has been palatable so long. Cannibalism existed for thousands of years, slavery also, yet both have been practically abandoned, and now there seems to be a chance to do away the last and greatest enemy of humanity—war. To stop an evil that has existed so long and whose roots reach back into the beginning of history will necessarily require colossal effort and great sacrifice. Such an effort has been successful only once in the history of the world. That was when the Westphalian peace treaty was signed, in 1648 after the Thirty Years' War.^[4] This resulted in abolishing the most difficult kind of wars—religious wars. If the seventeenth century could accomplish this greater task, certainly the twentieth century should take courage and likewise put an end to political wars, the lesser task. It may not be possible to make war impossible, but this is no reason it should not be tried. It may be possible, however, to make war most improbable.

SCIENTIFIC METHOD IN HISTORY NECESSARY.

In the writing of history a common illusion is to exaggerate the future importance of contemporary events. Both sides in the French Revolution thought that the end of the world had come, as no doubt it had for some. Comparatively few men can get outside of their country and look at things

as they are, but very few or none can separate themselves from their generation and look without prejudice into the future. The importance of every great event is usually exaggerated by those immediately interested. From the historical point of view, the degree of importance of current events can not be determined until some time afterwards when the sources are more accessible, and it is possible to consider them calmly, and from the point of view of strict truth, which is one of the main principles of scientific inquiry. History is continuous and not broken up by what the present generation may think to be a finality or cataclysm; there may be progress or retrogression, but neither is so great as they appear at the time of the events which cause enthusiasm and optimism in the victorious and despair and pessimism in the vanquished. These are temporary phenomena, being only links in the historical chain. The changes after this war back to normal conditions may be much greater and faster than in previous wars. In this connection it must be remembered that the humane spirit is now much more diffused in the world than in the past, which is indicated by the enormous extent of protests against the horrors of war.^[5] These horrors are common to all wars and were relatively as frequent in the past, if not more so. It is true that the absolute number of outrages may have been much greater in the present war than in previous wars, but this is probably due mainly to the enormous number of individuals engaged in the war.

INTERDEPENDENCE OF NATIONS A DEMOGRAPHIC LAW.

The world has become so closely connected through modern means of communication that any war might result in a world war. The prevalent political tendencies are in the direction of combination and resultant consolidation. The question soon arises, Shall combination and regulation go beyond national limits? The old-fashioned ideas of national limits do not seem to be adapted to present conditions. Commercially such limits are impracticable and appear to be so in other ways.^[6] The Constitution of the United States has 18 amendments. This demographic law of interdependence of nations necessarily results in combination, which eventually may lead to international solidarity.

Whether we will or no, this demographic law of interdependence of nations can not be escaped. Just as the States of the Union are now closer together

than their counties were many years ago, through the enormous development of physical means of communication, so governments are now brought more closely in contact than were the States at the time of the formation of the Union. This demographic law of increasing interdependence when carefully examined appears to be almost as necessary as the law of gravity. It has been at work ever since history began and, though little noticed perhaps, it has been manifesting itself more and more as history advanced. The individual is subordinate to the community and must yield some of his sovereignty to it, the community in turn must yield to the county, the county to the State, the State to the Nation, and finally the Nation to the world. This last step is the one now pending in Europe, and eventually, if not presently, may result in international solidarity, which will practically put an end to political wars just as the Westphalian peace did with religious wars.

INTERNATIONAL ORGANIZATIONS AND DEMOGRAPHIC LAW OF INTERDEPENDENCE OF STATES.

The tendency toward this demographic law of interdependence of States is shown by the large number of international organizations such as congresses or conferences which are held from time to time in different countries of the world. From the Conference of Vienna (1815) to the present time there have been some two hundred or more international congresses, the majority of which had to do with regulation of economic and sociologic affairs. Thus manufacturers, merchants, and capitalists of different countries have met and made agreements to control and regulate production and distribution of merchandise.

There is also the Universal Postal Union, which is an illustration of international control or government. Objections are sometimes made against international government, which were made years ago against the International Postal Union. It now has a constitution obeyed by all nations. Refusal to obey would deprive a country of the benefits of the union. As a matter of fact, no country has done this.

POWER OF INTERNATIONAL ORGANIZATIONS.

If there were an international organization for war as well as for postage, and one or two nations should refuse to obey the decisions of a majority, or three-fourths of the organization, each of these recalcitrant nations could be boycotted economically and in many other ways by the remaining member nations. It is very doubtful if any nation would take such chances.

Any international organization helps toward peace by making action less precipitate, for if it were known in advance that a conference were to take place, this would tend to make nations less disposed to go to war. In fact, all international conferences, like the International Congress of Criminal Anthropology, tend to intellectual, moral, and sociological solidarity between nations, in accordance with our demographic law of interdependence. (See Equation of law later on.) This International Congress of Criminal Anthropology, for instance, consists of some four hundred university specialists in anthropology, medicine, psychology, and sociology, who come from almost all countries of the world.

In the eighteenth century international relations consisted of diplomatic conversations and were regulated by an occasional treaty, but, owing to the very inadequate means of communication, few international relations were required. In the nineteenth century the change in international conditions was very great. When international organizations represent some actual phase of life, whether educational, commercial or scientific, they really regulate their relations between nations and are often organs of international government. In short, international conferences and congresses act like legislatures between nations.

If conferences had been in vogue and one had been held concerning the dispute between Austria and Serbia, very probably there would not have been any war, because, if for no other reason, the diplomats would have seen that it might lead to a general war in Europe, and as no nation cared to take that responsibility the diplomatic procedure would doubtless have been modified. Thus the conference over the Morocco question killed it as a cause of war.

This and other practical examples of government between nations show that the great success, convenience, and benefit to all nations encourage the further development of international organizations. The difficulties and

dangers predicted have not come to pass. International administration has come in the cases of railroads, ships, and automobiles. An elaborate international government has come (through treaties) in public health and epidemics, and international notification of the presence of disease has been made obligatory.

SOVEREIGNTY CHANGES ACCORDING TO THE DEMOGRAPHIC LAW OF INTERDEPENDENCE OF NATIONS.

The old idea of the independence of the State, mingled with that of sovereignty, prestige, and honor, and exaggerated by false patriotism, although limited more and more by conditions of civilization, is one of the main obstacles to the development of international organization and government.

The habit of holding conferences or congresses would get the people to expect international government and insist on it, and any country would hesitate long before refusing to agree to a conference.

The idea that sovereignty is destroyed because a nation is not absolutely independent belongs to the old régime, when many modern means of communication did not exist. In those days of comparative isolation there was reason for much independence, but now countries are so closely connected, as we have seen, that their independence and sovereignty are necessarily limited, while their interdependence has increased to such an extent that what benefits or injures one benefits or injures the other. Thus it is to the advantage of each State to give up some of its sovereignty, just as it is for the individual to give up some of his freedom to the community for privileges much greater than the loss of his so-called independence. It is well known how the States of our Union have gradually yielded more and more of their sovereignty to the Federal Government. Thus sovereignty decreases according to our law of the interdependence of States.

CAUSE OF WAR NOT NECESSARILY ECONOMIC.

It is frequently asserted that after all the main cause of most wars is rivalry in trade and commercial friction; in short, it is economic. But it is a curious

fact that commerce and industry are the most insistent on international rules or law to reduce all friction to a minimum, for peaceful trading is a general benefit to all concerned.

It might be stated in this connection that in historical and political as well as physical science there is no one cause of anything, but a chain of causes; for the more we study the world, the closer we find it related; nothing is nor can be really alone. When we single out a cause we mean the predominant one, and which is the strongest link in the chain of causes becomes a matter of opinion, owing to our limited knowledge of international psychology.

Commercial systems of the world have brought nations closer together, but political relations have remained much the same; that is, the advances in diplomacy have been very few in comparison with the growth of economic relations which makes for peace rather than war.

NO INTERNATIONAL GOVERNMENT; NO LASTING PEACE.

That the lack of international government means international anarchy may be illustrated by some recent events. Owing to the struggle of Serbia for expansion, Austria feared the seizure of its own territory and loss of some of its population, and so refused to accept mediation, because the Hapsburg monarchy being reported declining, she must counteract this impression by showing vigorous action. The success of Austria would be regarded by Russia as a threat to herself, but a defeat of Austria by Russia would be a defeat for Germany, and a German defeat for Russia and France would be regarded as a defeat for England. Thus the lack of any international government or organization made cooperation for peace almost, if not quite, impossible. England might have said to herself, among other reasons, "If I stay out of the war, Germany may overrun France and Belgium, resulting in a union of the French and German Navies, but we are an island, and it would not do to risk the danger of such a combination."

Frontier questions have perhaps been the main cause of more wars in history than anything else. But in the course of events such questions have come to be settled without resort to force, which is a change from national to international government.

NATIONALISM MAY CONFLICT WITH THE PEOPLES' INTEREST.

Another nationalistic anachronism is the geographical standard in governmental matters. But intercommunications are so many and so close that geographical relations have few reasons to be considered. Individual and racial interests are less geographical and more sociological. But governmental matters have not developed near so fast as sociological conditions.

Nationalism more often represents the interests of the few rather than the many. Unfortunately it is easy to bolster up a narrow and selfish nationalism by appeal to the patriotism of the masses who fail to understand the conditions and support the interests of a few against their own vital interests. While anarchy between nations (nationalism) makes future wars probable, anarchy within nations can be easily stopped by doing justice to the masses.

WAR WORST METHOD OF SETTLING DIFFICULTIES.

An egotistical, selfish, and narrow nationalism, the basis of international anarchy, has been demonstrated a partial, if not complete, failure by the condition in which Europe is to-day. War, though only one of many methods for settling difficulties between nations, has, nevertheless, been the main one. There is a strong desire among the people to substitute some other method.

Generally a nation has two things to consider—one is what it wants; the other whether it can enforce its wants. This is the usual nationalistic dilemma, but our demographic law of the interdependence of nations assumes that each country will respect the other countries and be willing to consider their wishes at least in vital matters.

Where the differences between two nations have threatened the peace of Europe it has been felt that such a matter was more than a national question; in fact, passed over into the international realm, and so conferences have been called which to a certain extent recognized the principle of interdependence and have enforced its decisions by blockade if not by more

warlike means. If a nation adopt the methods of force, it is appealing to international anarchy, which causes nations to break international law much more readily than otherwise. In fact, military necessity knows no law.

It may seem odd that conferences are so often called for war instead of for peace. But it is necessity that often rules; the wheel in the machine is not examined until it is out of order, human beings were never studied scientifically until they became lunatics or criminals. So peace seems to have been little thought of until danger of war appeared. Peace is like good health, we do not know its value until we lose it.

SECRET DIPLOMACY INSIDIOUS.

All treaties between nations should be published in order to make the diplomacy of intrigue and deception impossible or at least most difficult to carry into effect. Secret diplomacy enables those who want war to bring something to light suddenly and cause excitement and fear among the people and thus drive them into war before they understand what they are doing. The psychology of fear shows its power in producing apprehension by catch phrases, such as "the crisis is acute," or "there is panic on the stock exchange," or "negotiations may come to an end," or "an ultimatum has been sent." Patriotic as well as fear inspiring phrases are published broadcast leading the people into war, but they must always be made to believe that it is in defense of their country, whether it is or not.

But open diplomacy and international conferences prevent insidious methods of producing excitement; they also give the people time to think and avoid precipitate action; also facts are brought to light that otherwise might have been concealed by those desiring war.

COMPETITIVE ARMAMENTS LEAD TO WAR.

Competitive armaments, for which the masses are compelled to pay and by which they are killed, hasten the probability of future wars. Great armaments lead to competitive armament, which experience shows to be no guaranty of peace, for it makes a nation feel so well prepared for war that when a dispute arises, and it is thought a few days' delay may give the

enemy an advantage that might never be regained, the enemy must be attacked at once. Thus Austria refused to extend time to Serbia nor would she take part in a conference of ambassadors nor respond to the Serbian note to refer the dispute to The Hague. So Germany refused a similar proposal to the Czar on July 29 and allowed Russia but 12 hours to answer the ultimatum. Russia had begun to mobilize and Germany's fear, if the proposal for pacific settlement were accepted, Russia would get the start and gain a military advantage probably caused Germany to strike at once. Thus such preparedness actually prevented any chance for even discussion of a peaceful settlement. Also the knowledge that Russia's Army and Navy were to be increased and strategic railroads built and that France was about to reintroduce three years' military service may have caused Germany to think it imprudent to delay an inevitable war any longer.

PERMANENT PEACE HINDERED BY SPIRIT OF HATE.

There can be no permanent peace so long as the idea of crushing this or that nation prevails. The question is not national, but international. The nationalistic spirit of hate may be temporarily useful in stirring up a country to fight better, but it does not tend toward a lasting peace. In the study of war we should seek the causes, be impersonal, and neither condone nor accuse. The scientific investigation of war comes under the head of criminal anthropology, one of the purposes of which is by knowledge gained to lessen or stop war permanently rather than discuss the ethics of war involving the spirit of hate and vengeance.

NO PERMANENT PEACE WITH NATIONALISM ALONE.

The existing conditions between nations are somewhat like as if a State had rules and laws as to what to do when murder and riot occur, but no laws to prevent murder and riot, or, if there were laws, no power to execute them.

From the theoretical point of view these irrational and abnormal conditions are evident, and yet they have been considered normal conditions for ages. This is indicated by the remark of a diplomat, who said: "Things are getting back to a wholesome state again, every nation for itself and God for us all." As long as such an extreme and pathological form of nationalism exists no

permanent peace is probable, if not impossible. Nationalism has had a long trial with comparative freedom, and one of its grand finales is the present European war.

A FEW SUGGESTIONS FOR PERMANENT PEACE.

It would go far beyond the purpose of this article to discuss the many methods proposed for establishing permanent peace, yet one may be allowed merely to note a few points. There might be established an international high court to decide judicial issues between independent sovereign nations and an international council to secure international legislation and to settle nonjudicial issues. Also, an international secretariat should be established. Some fundamental principles of such international control might be to disclaim all desire or intention of aggression, to pursue no claim against any other independent state; not to send any ultimatum or threat of military or naval operations or do any act of aggression, and never to declare war or order any general mobilization or violate the territory or attack the ships of another state, except in way of repelling an attack actually made; not to do any of these until the matter in dispute has been submitted to the international high court or to the international council, and not until a year after the date of such submission.

PROHIBITIONS FOR RECALCITRANT STATES.

In order to enforce the decrees of the international high court against any recalcitrant State an embargo on her ships and forbidding her landing at any capital might be initiated. Also there might be instituted prohibition of postal and telegraph communication, of payment of debts due to citizens, prohibition of all imports and exports and of all passenger traffic; to level special duties on goods to such State and blockade her ports. In short, an effort should be made to enforce complete nonintercourse with any recalcitrant State.

Should a State proceed to use force to go to war rather than obey the decree of the international high court all the other constituent States should make common cause against such State and enforce the order of the international high court.

THE PSYCHOLOGICAL MOMENT FOR PREVENTING WAR IS SOON AFTER WAR.

If an absolute agreement among leading nations of the world never to resort to war could be obtained at the outset all other questions could be settled more justly and with fewer difficulties, for the consciousness that the supreme question was out of the way would relieve the psychological tension and afford opportunity for a more calm and careful consideration and adjudication of all other matters in dispute. It would be like the consciousness of the lawyer, when having lost his case in all other courts is content to let the United States Supreme Court settle it forever. This is due to the psychological power of the radiation of justice from the top downward.

Such an absolute and final agreement never to resort to war can be best accomplished right after the war, when all are sick of war and the very thought of it causes the suffering, wounded, and bleeding people to turn their heads significantly away with a profound instinctive feeling, crying out that anything is better than to go back to the old régime. In such a state of mind mutual concessions are much easier to make than later on.

The psychological moment to prevent such suffering of the masses from ever occurring again is soon after the war. It is a sad comment that the number and untold suffering of millions of human beings seem to have been required for the nationalistic spirit of Europe to be willing to follow international humanitarian ideas toward establishing permanent peace in the world.

THE HAGUE RULES ONLY SUGGESTIONS.

The diplomats who wrote the rules at The Hague Convention knew well that they might be more or less disregarded; they were only suggestions. As war assumes the right to kill human beings, what rights, then, have the victims left over that are worth mentioning? As to what way they are killed there is little use of considering, probably the quicker the better, for there is less suffering. If prisoners must starve, it is a mercy to shoot them. To regulate murder of human beings is more or less humbug. The thing to do is

to try to abolish international anarchy and slaughter forever, and to accomplish this the egotism, selfishness, and narrowness of nations must be so modified that they are willing to make the necessary sacrifice.

If the reader believes the general ideas set forth in this study, let him or her aid the writer in a practical way and send a contribution to help circulate these ideas, not only in English and other languages but in other countries as well as the United States.

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EQUATION OF THE DEMOGRAPHIC LAW OF INTERDEPENDENCE OF NATIONS.

As already noted, our demographic law of the interdependence of nations is, that increase in the means of communication between States causes increase of their interdependence but decrease in their sovereignty. Just as a physical body consists of molecules of various kinds, so the State may be regarded as a psychological entity with citizens of various characteristics, and just as the density of a body is equal to its mass divided by its volume, so the density of citizenship is equal to the population divided by the land area.

If, therefore, we consider the States' adult population, as its mass (m) and the resultant aggregate increase of its means of communication as its velocity (v), and (t) as the time, then the psychological force (F) or interdependence of the State can be expressed by the familiar equation in physics $F=mv/t$; that is to say, the interdependence of a State is equal to its adult population (mass) multiplied by the resultant aggregate increase of its means of communication (velocity) and the product divided by the time (t).

The poundal unit of physical force is such a force as will move 1 pound (mass unit) at a velocity of 1 foot per second in one second of time.

Now, assuming the unit of citizenship of a State to be one citizen and the unit of the resultant aggregate increase of means of communication per annum in one year of time to be K , then

The statal unit of psychological force is such a force as will give one citizen (mass unit) one K unit (for convenience the K unit of annual aggregate increase of means of communication can be expressed in per cents. Taking some of the principal means of communication, and working out their annual average per cents of increase, we have for the United States during the census periods (1900-1910); annual average increase of passengers on railroads, 7 per cent; on street and electric railways, 3 per cent (1907-1912); of telegraph messages sent, 6 per cent; of telephone stations, 10 per cent. Combining these, the per cent of annual average aggregate increase will be 6.5 per cent, as value of K, assuming the percentages are equally weighted) of resultant aggregate increase of means of communication per annum in one year of time.

As yet there is no exact way to measure the sovereignty and means of communication of the State, but the psychological side of this physical equation may suggest a working hypothesis for our demographic law of the interdependence of States which may some time be useful in the realm of international psychology.

To measure the aggregate influence upon citizens of the many means of communication in a State (also, for illustration merely, let us take one of the principal means of communication, as steam railroads, and we find that the annual average increase in passenger-train-car miles for one citizen of the United States, from 1908 to 1914, to be 4.45, which is the value of K for steam railroads alone for period mentioned. In a later article the author will consider in detail the practical application of the equation) as steam, street and electric railways, telegraph and telephones, will require exact detailed knowledge of the mental, moral, and physical power of the individual citizen, the unit of the social organism. Such measurements might be made when psychology and sociology become sciences in the rigid sense. The underlying hypothesis in this equation is that both the psychological and physical mechanism of the world are under one fundamental law.^[7]

LAWS OF REVOLUTION.^[8]

Scientific history teaches that without war many revolutions could never have taken place. One of the greatest problems of future government is to reconcile democratic equality with hereditary inequality among the people. Governments differ much more in form than in substance, and make progress when the resultant activities of the citizens direct and control them.

With this in mind, a few principles of revolutions may be instructive in connection with the present European situation.

1. The causes of revolutions are summed up in the word "discontent," which must be general and accompanied with hope in order to produce results.
2. Modern revolutions appear to be more abrupt than ancient. Contrary to expectation, conservative people may have the most violent revolutions, because of not being able to adapt themselves to changes of environment.
3. Revolution owes its power to the unchaining of the people, and does not take place without the aid of an important fraction of the army, which usually becomes disaffected by power of suggestion.
4. The triumphant party will organize according to whether the revolution is effected by soldiers, radicals, or conservatives.
5. The violence is liable to be great if a belief as well as material interests are being defended.
6. For ideas which cause violent contradictions are matters of faith, rather than of knowledge.
7. If the triumphant party go to extremes, bordering upon absurdities, they are liable to be turned down by the people.
8. Most revolutions aim to put a new person in power, who usually tries to establish an equilibrium between the struggling factions, and not be too much dominated by any one class.

9. The rapidity of modern revolutions is explained by quick methods of publicity, and the slight resistance and ease with which some governments have been overturned is surprising, indicating blind confidence and inability to foresee.

10. Governments sometimes have fallen so easily that they are said to have committed suicide.

11. Revolutionary organizations are impulsive, though often timid, and are influenced by a few leaders, who may cause them to act contrary to the wishes of the majority. Thus royal assemblies have destroyed empires and humanitarian legislatures have permitted massacres.

12. When all social restraints are abandoned, and instinctive impulses are allowed full sway, there is danger of return to barbarianism. For the ancestral ego (inherent in everyone) is let loose.

13. A country will prosper in proportion that the really superior persons rule, and this superiority is both moral and mental.

14. If certain social tendencies appear to lower the power of mind, they, nevertheless, may lessen injustice to the weaker classes; and if it be a choice between mentality and morality, morality should be preferred.

15. A financial aristocracy does not promote much jealousy in those who hope to form a part of it in the future.

16. Science has caused many things once held to be historical to be now considered doubtful. Thus it is asked—

17. Would not the results of the French Revolution, which cost so much bloodshed, have been obtained without violence later, through gradual evolution? And were the results of the French Revolution worth the cost of the terrible barbarism and suffering that took place?

18. To understand the people in a revolution we must know their history.

19. The accumulated thought, feeling, and tradition of a nation constitute its strength, which is its national spirit. This must not be too rigid, nor too malleable. For, in the first place, revolution means anarchy, and, in the second place, it results in successive revolutions.

WAR AND PEACE STUDIES.

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FOOTNOTES:

[1] Article (by writer) in Central Law Journal, St. Louis, April 25, 1919, and in Open Court, April, 1919, Chicago, Ill.

[2] See a study of the United States Senate by the writer (published in Spanish) under the title "Estudio del Senado de los Estados Unidos de America." in Revista Argentina de Ciencias Politicas, 12 de Enero de 1918. (Buenos Ayres, 1918.)

[3] Article (by writer) in Chicago Legal News for May 3, 1919.

[4] See Article (by author) entitled "Suggestions from the Westphalian Peace treaty for the Peace conference in France," published in the Journal of Education, Boston, March 27, 1919, and Central Law Journal, St. Louis, Mo., April, 1919; also in Open Court for April, 1919, Chicago.

[5] See article (by author) in Pacific Medical Journal, San Francisco, Calif., April, 1916, entitled "Atrocities and Outrages of War"; also pamphlet (by author) entitled "War and Criminal Anthropology," reprinted from the CONGRESSIONAL RECORD for February 17 and March 15, 1917. Washington, D. C.

[6] Woolf, L. S., International Government, Fabian Research Department, London.

[7] See article (by author) entitled "Anthropology of Modern Civilized Man" in Medical Fortnightly and Laboratory News, St. Louis, Mo., April, 1919; also chapter on "Emil Zola" in Senate Document (by author) No. 532, Sixtieth Congress, first session.

[8] Article (by writer) in Journal of Education, Boston, Mass., for December 26, 1918.

TRANSCRIBER'S NOTES:

The following typographical errors have been corrected, which are also shown in the text with mouse-hover popups:

- "Westphalla" corrected to "Westphalia" (Page 5)
- "Calvanists" corrected to "Calvinists" (Page 6)
- "turbulations" corrected to "tribulations" (Page 7)
- "centry" corrected to "century" (Page 7)
- "wtihout" corrected to "without" (Page 7)
- "defenstration" corrected to "defenestration" (Page 8)
- "importauce" corrected to "importance" (Page 8)
- "La Prenso" corrected to "La Prensa" (Page 16)

- "Rivista d'Ialia" corrected to "Rivista d'Italia"
(Page 16)

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